



Residential Tenancy Agreement

Important Notes:

#RTB-1

The Residential Tenancy Branch (RTB) is of the opinion that this Residential Tenancy Agreement accurately reflects the *Residential Tenancy Act* (RTA) and accompanying regulations. The RTB makes no representations or warranties regarding the use of this Agreement. A landlord and tenant may wish to obtain independent legal advice regarding whether this agreement satisfies their own personal or business needs. For the rental of a manufactured home and a manufactured home site under a single tenancy agreement, use this Agreement form. For the rental of a manufactured home site use the Manufactured Home Site Tenancy Agreement (form RTB-5).

The words **tenant** and **landlord** in this tenancy agreement have the same meaning as in the RTA, and the singular of these words includes the plural. In this tenancy agreement, the words **residential property** have the same meaning as in the RTA. **Residential property** means a building, a part of a building or related group of buildings, in which one or more rental units or common areas are located; the parcel or parcels on which the building, related group of buildings or common areas are located; the rental unit and common areas and any other structure located on the parcel or parcels.

IF ADDITIONAL SPACE IS REQUIRED TO LIST ALL PARTIES, complete and attach Schedule of Parties (form RTB-26) RTB-26 used & attached: ☐

RESIDENTIAL TENANCY AGREEMENT between: (use full, correct legal names)

the LANDLORD(S): (if entry for landlord is a business name, use the 'last name' field box to enter the full legal business name)

Sutton-Group MetroLand Realty	
last name	first and middle name(s)
last name	first and middle name(s)

and the TENANT(S):

wang	alex
last name	first and middle name(s)
last name	first and middle name(s)

		jing_curie@hotmail.com
(optional) phone number		(optional) email address for service (see section 16 below)
7789913019		
(optional) other phone number		(optional) other email address for service

ADDRESS OF PLACE BEING RENTED TO TENANT(s) called the 'rental unit' in this agreement:

	89147 Jackson Motorway	New Westminster	BC	M4G6A5
unit number	street number and street name	city	province	postal code

ADDRESS FOR SERVICE of the ☐ landlord ☐ landlord's agent:

	8962 University High Street	Burnaby	BC	V5A 4Y6
unit/site #	street number and street name	city	province	postal code

604-XXX-XXXX			info@suttonmetroland.com
daytime phone number	other phone number		(optional) email address for service (see section 16 below)
fax number for service			(optional) other email address for service

1. APPLICATION OF THE RESIDENTIAL TENANCY ACT

- 1) The terms of this tenancy agreement and any changes or additions to the terms may not contradict or change any right or obligation under the *Residential Tenancy Act* or a regulation made under that Act, or any standard terms. If a term of this tenancy agreement does contradict or change such a right, obligation or standard term, the term of the tenancy agreement is void.
- 2) Any change or addition to this tenancy agreement must be agreed to in writing and initialed by both the landlord and the tenant. If a change is not agreed to in writing, is not initialed by both the landlord and the tenant or is unconscionable, it is not enforceable.
- 3) The requirement for agreement under subsection (2) does not apply to:
 - a) a rent increase given in accordance with the *Residential Tenancy Act*,
 - b) a withdrawal of, or a restriction on, a service or facility in accordance with the *Residential Tenancy Act*, or
 - c) a term in respect of which a landlord or tenant has obtained an arbitrator's order that the agreement of the other is not required.

2. BEGINNING AND TERM OF THE AGREEMENT (please fill in the dates and times in the spaces provided)

This tenancy created by this agreement starts on:

01	07	2025
day	month	year

Check ☐ A) and continues on a month-to-month basis until ended in accordance with the Act.
 A, B or C ☐ B) and continues on another periodic basis, as specified below, until ended in accordance with the Act.
 ☐ weekly ☐ bi-weekly ☐ other:

☒ C) and is for a fixed term ending on

31	07	2026
day	month	year

IF YOU CHOOSE C, CHECK AND COMPLETE D OR E

Check ☒ D) At the end of this time, the tenancy will continue on a month-to-month basis, or another fixed length of time, unless the tenant gives notice to end tenancy at least one clear month before the end of the term.
 D or E ☐ E) At the end of this time, the tenancy is ended and **the tenant must vacate the rental unit.**

This requirement is only permitted in circumstances prescribed under section 13.1 of the Residential Tenancy Regulation, or if this is a sublease agreement as defined in the Act.

Reason tenant must vacate (required):

Residential Tenancy Regulation section number (if applicable):

* If you choose E, both the landlord and tenant must initial here

The tenant **must move out on or before the last day of the tenancy.**

Landlord's Initials	Tenant's Initials
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3. RENT (please fill in the information in the spaces provided)

a) Payment of Rent:

The tenant will pay the rent of \$

 each (check one) ☐ day ☐ week ☒ month to the landlord on the first day of the rental period which falls on the (due date, e.g., 1st, 2nd, 3rd, 31st)

 day of each (check one) ☐ day ☐ week ☒ month subject to rent increases given in accordance with the RTA.

The tenant must pay the rent on time. If the rent is late, the landlord may issue a *Notice to End Tenancy for Unpaid Rent* (form RTB-30) to the tenant, which may take effect 10 days after the date the notice is given.

b) What is included in the rent: (Check only those that are included and provide additional information, if needed.)

The landlord must not terminate, or restrict a service or facility that is essential to the tenant's use of the rental unit as living accommodation, or that is a material term of the tenancy agreement.

☐ Water	☐ Natural gas	☐ Garbage collection	☐ Refrigerator	☐ Carpets
☐ Cablevision	☐ Sewage disposal	☐ Recycling services	☐ Dishwasher	☐ Parking for <table border="1" style="display: inline-table; width: 50px;"></table> vehicles
☐ Electricity	☐ Snow removal	☐ Kitchen scrap collection	☐ Stove and oven	☐ Other: <table border="1" style="display: inline-table; width: 150px;"></table>
☐ Internet	☐ Storage	☐ Laundry (coin-op)	☐ Window coverings	☐ Other: <table border="1" style="display: inline-table; width: 150px;"></table>
☐ Heat	☐ Recreation facilities	☐ Free laundry	☐ Furniture	☐ Other: <table border="1" style="display: inline-table; width: 150px;"></table>
☐ Additional information: <table border="1" style="display: inline-table; width: 450px;"></table>				

4. SECURITY DEPOSIT AND PET DAMAGE DEPOSIT

A. Security Deposits

The tenant is required to pay a security deposit of \$
 by

\$500.00	07	2025
day	month	year

B. Pet Damage Deposit ☐ not applicable

The tenant is **required to pay** a pet damage deposit of \$
 by

\$200.00	07	2025
day	month	year

- 1) The landlord agrees
 - a) that the security deposit and pet damage deposit must each not exceed one half of the monthly rent payable for the residential property,
 - b) to keep the security deposit and pet damage deposit during the tenancy and pay interest on it in accordance with the regulation, and
 - c) to repay the security deposit and pet damage deposit and interest to the tenant within 15 days of the end of the tenancy agreement, unless
 - i) the tenant agrees in writing to allow the landlord to keep an amount as payment for unpaid rent or damage, or
 - ii) the landlord applies for dispute resolution under the *Residential Tenancy Act* within 15 days of the end of the tenancy agreement to claim some or all of the security deposit or pet damage deposit.
- 2) The 15 day period starts on the later of
 - a) the date the tenancy ends, or
 - b) the date the landlord receives the tenant's forwarding address in writing.
- 3) If a landlord does not comply with subsection (1)(c), the landlord
 - a) may not make a claim against the security deposit or pet damage deposit, and
 - b) must pay the tenant double the amount of the security deposit, pet damage deposit, or both.
- 4) The tenant may agree to use the security deposit and interest as rent only if the landlord gives written consent.

5. PETS

Any term in this tenancy agreement that prohibits, or restricts the size of, a pet or that governs the tenant's obligations regarding the keeping of a pet on the residential property is subject to the rights and restrictions under the *Guide Dog and Service Dog Act*.

6. CONDITION INSPECTIONS

- 1) In accordance with sections 23 and 35 of the Act [condition inspections] and Part 3 of the regulation [condition inspections], the landlord and tenant must inspect the condition of the rental unit together
 - a) when the tenant is entitled to possession,
 - b) when the tenant starts keeping a pet during the tenancy, if a condition inspection was not completed at the start of the tenancy, and
 - c) at the end of the tenancy.
- 2) The landlord and tenant may agree on a different day for the condition inspection.
- 3) The right of the tenant or the landlord to claim against a security deposit or a pet damage deposit, or both, for damage to residential property is extinguished if that party does not comply with section 24 and 36 of the *Residential Tenancy Act* [consequences if report requirements not met].

7. PAYMENT OF RENT

- 1) The tenant must pay the rent on time, unless the tenant is permitted under the Act to deduct from the rent. If the rent is unpaid, the landlord may issue a *10 Day Notice to End Tenancy* (form RTB-30) to the tenant, which may take effect not earlier than 10 days after the date the tenant receives the notice.
- 2) The landlord must not take away or make the tenant pay extra for a service or facility that is already included in the rent, unless a reduction is made under section 27 (2) of the Act.
- 3) The landlord must give the tenant a receipt for rent paid in cash.
- 4) The landlord must return to the tenant on or before the last day of the tenancy any post-dated cheques for rent that remain in the possession of the landlord. If the landlord does not have a forwarding address for the tenant and the tenant has vacated the premises without notice to the landlord, the landlord must forward any post-dated cheques for rent to the tenant when the tenant provides a forwarding address in writing.

8. RENT INCREASE

- 1) Once a year the landlord may increase the rent for the existing tenant. The landlord may only increase the rent 12 months after the date that the existing rent was established with the tenant or 12 months after the date of the last legal rent increase for the tenant, even if there is a new landlord or a new tenant by way of an assignment. The landlord must use the approved Notice of Rent Increase form available from any Residential Tenancy Branch office or Service BC office.
- 2) A landlord must give a tenant three whole months notice, in writing, of a rent increase. [For example, if the rent is due on the 1st of the month and the tenant is given notice any time in January, including January 1st, there must be three whole months before the increase begins. In this example, the months are February, March and April, so the increase would begin on May 1st.]
- 3) The landlord may increase the rent only in the amount set out by the regulation. If the tenant thinks the rent increase is more than is allowed by the regulation, the tenant may talk to the landlord or contact the Residential Tenancy Branch for assistance.
- 4) Either the landlord or the tenant may obtain the percentage amount prescribed for a rent increase from the Residential Tenancy Branch.

9. ASSIGN OR SUBLET

- 1) The tenant may assign or sublet the rental unit to another person with the written consent of the landlord. If this tenancy agreement is for a fixed length and has 6 months or more remaining in the term, the landlord must not unreasonably withhold consent. Under an assignment a new tenant must assume all of the rights and obligations under the existing tenancy agreement, at the same rent. The landlord must not charge a fee or receive a benefit, directly or indirectly, for giving this consent.
- 2) If a landlord unreasonably withholds consent to assign or sublet or charges a fee, the tenant may apply for dispute resolution under the *Residential Tenancy Act*.

10. REPAIRS

- 1) Landlord's obligations:
 - a) The landlord must provide and maintain the residential property in a reasonable state of decoration and repair, suitable for occupation by a tenant. The landlord must comply with health, safety and housing standards required by law.
 - b) If the landlord is required to make a repair to comply with the above obligations, the tenant may discuss it with the landlord. If the landlord refuses to make the repair, the tenant may

seek an arbitrator's order under the *Residential Tenancy Act* for the completion and costs of the repair.

- 2) Tenant's obligations:
 - a) The tenant must maintain reasonable health, cleanliness and sanitary standards throughout the rental unit and the other residential property to which the tenant has access. The tenant must take the necessary steps to repair damage to the residential property caused by the actions or neglect of the tenant or a person permitted on the residential property by the tenant. The tenant is not responsible for reasonable wear and tear to the residential property.
 - b) If the tenant does not comply with the above obligations within a reasonable time, the landlord may discuss the matter with the tenant and may seek a monetary order through dispute resolution under the *Residential Tenancy Act* for the cost of repairs, serve a notice to end a tenancy, or both.
- 3) Emergency Repairs:
 - a) The landlord must post and maintain in a conspicuous place on the residential property, or give to the tenant in writing, the name and telephone number of the designated contact person for emergency repairs.
 - b) If emergency repairs are required, the tenant must make at least two attempts to telephone the designated contact person, and then give the landlord reasonable time to complete the repairs.
 - c) If the emergency repairs are still required, the tenant may undertake the repairs, and claim reimbursement from the landlord, provided a statement of account and receipts are given to the landlord. If the landlord does not reimburse the tenant as required, the tenant may deduct the cost from rent. The landlord may take over completion of the emergency repairs at any time.
 - d) Emergency repairs must be urgent and necessary for the health and safety of persons or preservation or use of the residential property and are limited to repairing
 - i) major leaks in pipes or the roof,
 - ii) damaged or blocked water or sewer pipes or plumbing fixtures,
 - iii) the primary heating system,
 - iv) damaged or defective locks that give access to a rental unit, or
 - v) the electrical systems.

11. OCCUPANTS AND GUESTS

- 1) The landlord must not stop the tenant from having guests under reasonable circumstances in the rental unit

- 2) The landlord must not impose restrictions on guests and must not require or accept any extra charge for daytime visits or overnight accommodation of guests.
- 2.1) Despite subsection (2) of this section but subject to section 27 on the Act [terminating or restricting services or facilities], the landlord may impose reasonable restrictions on guests' use of common areas of the residential property.
- 3) If the number of occupants in the rental unit is unreasonable, the landlord may discuss the issue with the tenant and may serve a notice to end a tenancy. Disputes regarding the notice may be resolved through dispute resolution under the *Residential Tenancy Act*.

12. LOCKS

- 1) The landlord must not change locks or other means of access to residential property unless the landlord provides each tenant with new keys or other means of access to the residential property.
- 2) The landlord must not change locks or other means of access to a rental unit unless the tenant agrees and is given new keys.
- 3) The tenant must not change locks or other means of access to
 - a) common areas of residential property, unless the landlord consents to the change, or
 - b) his or her rental unit, unless the landlord consents in writing to, or an arbitrator has ordered, the change.

13. LANDLORD'S ENTRY INTO RENTAL UNIT

- 1) For the duration of this tenancy agreement, the rental unit is the tenant's home and the tenant is entitled to quiet enjoyment, reasonable privacy, freedom from unreasonable disturbance, and exclusive use of the rental unit.
- 2) The landlord may enter the rental unit only if one of the following applies:
 - a) at least 24 hours and not more than 30 days before the entry, the landlord gives the tenant a written notice which states
 - i) the purpose for entering, which must be reasonable, and
 - ii) the date and the time of the entry, which must be between 8 a.m. and 9 p.m. unless the tenant agrees otherwise;
 - b) there is an emergency and the entry is necessary to protect life or property;
 - c) the tenant gives the landlord permission to enter at the time of entry or not more than 30 days before;
 - d) the tenant has abandoned the rental unit;
 - e) the landlord has an order of an arbitrator or court saying the landlord may enter the unit;
 - f) the landlord is providing housekeeping or related services and the entry is for that purpose and at a reasonable time.

- 3) The landlord may inspect the rental unit monthly in accordance with subsection (2) (a).
- 4) If a landlord enters or is likely to enter the rental unit illegally, the tenant may apply for an arbitrator's order under the *Residential Tenancy Act*, to change the locks, keys or other means of access to the rental unit and prohibit the landlord from obtaining entry into the rental unit. At the end of the tenancy, the tenant must give the key to the unit to the landlord.

14. ENDING THE TENANCY

- 1) The tenant may end a monthly, weekly or other periodic tenancy by giving the landlord at least one month's written notice. A notice given the day before the rent is due in a given month ends the tenancy at the end of the following month. [For example, if the tenant wants to move at the end of May, the tenant must make sure the landlord receives written notice on or before April 30th.]
- 2) This notice must be in writing and must
 - a) include the address of the rental unit,
 - b) include the date the tenancy is to end,
 - c) be signed and dated by the tenant, and
 - d) include the specific grounds for ending the tenancy, if the tenant is ending a tenancy because the landlord has breached a material term of the tenancy.
- 3) If this is a fixed term tenancy and the agreement does not require the tenant to vacate at the end of the tenancy, the agreement is renewed as a monthly tenancy on the same terms until the tenant gives notice to end a tenancy as required under the *Residential Tenancy Act*.
- 4) The landlord may end the tenancy only for the reasons and only in the manner set out in the *Residential Tenancy Act* and the landlord must use the approved notice to end a tenancy form available from the Residential Tenancy Branch.
- 5) The landlord and tenant may mutually agree in writing to end this tenancy agreement at anytime.
- 6) The tenant must vacate the residential property by 1 p.m. on the day the tenancy ends, unless the landlord and tenant otherwise agree.

15. LANDLORD TO GIVE TENANCY AGREEMENT TO TENANT

The landlord must give the tenant a copy of this agreement promptly, and in any event within 21 days of entering into the agreement.

16. SERVICE OF DOCUMENTS

If you provide an email address in this agreement, you may be given or served documents related to the tenancy agreement or to an application for dispute resolution at the email address provided in this agreement. Depending on the type of document, there may be time limits for further action. If you provide an email for service, you are responsible for monitoring the email address on a regular basis.

17. ADDITIONAL TERMS

- a) Write down any additional terms which the tenant and the landlord agree to. Additional terms may cover matters such as pets, yard work, smoking and snow removal. Additional pages may be added.
- b) Any addition to this tenancy agreement must comply with the *Residential Tenancy Act* and regulations, and must clearly communicate the rights and obligations under it. If a term does not meet these requirements, or is unconscionable, the term is not enforceable.
- c) Attached to this tenancy agreement, there ☒ is ☐ is not an Addendum

If there is an Addendum attached, provide the following information on the Addendum that forms part of this tenancy agreement:

Number of pages of the Addendum:

Number of additional terms in the Addendum:

By signing this tenancy agreement, the landlord and the tenant are bound by its terms.

LANDLORD(S): (if entry for landlord is a business name, use the 'last name' field box to enter the full legal business name)

Sutton-Group MetroLand Realty

last name

first and middle name(s)

Signature: _____

Date: 2025-07-27

last name

first and middle name(s)

Signature: _____

Date: _____

TENANT(S):

wang

last name

first and middle name(s)

Signature: alex

Date: 2025-07-27

last name

first and middle name(s)

Signature: _____

Date: _____

General Information about Residential Tenancy Agreements

Important Legal Document – This tenancy agreement is an important legal document. Keep it in a safe place.

Additional Terms – Any additional terms cannot contradict or change any right or duty under the RTA or this tenancy agreement.

Amendment of the RTA – The RTA or a regulation made under the RTA, as amended from time to time, may take priority over the terms of this tenancy agreement.

Condition Report – The landlord and tenant are required to inspect the residential unit together at the beginning and end of the tenancy and complete a written condition report. If the landlord allows the tenant to have a pet after the start of the tenancy, an inspection report must be done on the day the tenant starts keeping a pet or on another day mutually agreed to by the landlord and tenant, unless the tenancy started on or after January 1, 2004, and a condition inspection report was completed at that time. A report may describe any damage, how clean each room is, and the general condition of the residential unit including: the floors, carpets, appliances, and paint on the walls. The report must be signed and dated by both the landlord and the tenant who made the inspection, and each should keep a copy.

Change of Landlord – A new landlord has the same rights and duties as the previous one and must follow all the terms of this agreement unless the tenant and new landlord agree to other terms.

Resolution of Disputes – If problems or disagreements arise, the landlord and tenant should try to talk to each other to find a solution. If they still cannot agree, either may contact the Residential Tenancy Branch for clarification of their rights and responsibilities or an intervention. If no agreement is reached, a landlord or a tenant may apply for a dispute resolution to get a decision. Many, but not all, kinds of disagreements can be decided by dispute resolution.

FOR MORE INFORMATION

RTB website: www.gov.bc.ca/landlordtenant

Public Information Lines 1-800-665-8779 (toll-free) Greater Vancouver 604-660-1020

Victoria 250-387-1602



Sutton-Group MetroLand Realty
Address: 8962 University High Street, Burnaby, V5A 4Y6

ADDENDUM TO THE RESIDENTIAL TENANCY AGREEMENT

- There will be _____ person occupying the rental Premises and their names are:
- _____
- _____
- ADDITIONAL OCCUPANTS.** Only persons listed in clause 1 may occupy the premises. Any other person who, without a landlord's written permission, can not occupy or reside in the premises for more than 14 cumulative days in a calendar year. However, the tenant's immediate family members may stay for no more than 30 cumulative days in a calendar year. Contravention of this section shall be considered a breach of the material term of the lease and it will result in a fine of **half-a-month rent**.
- GUEST.** The tenant may have guests under reasonable circumstances in the rental unit, but the number and frequency of visitors must be reasonable and not disturbing the other occupants or neighbors and **the use of the shared area must be agreed by all tenants**. If the landlord is receiving complaints, the landlord may discuss the issue with the tenant and may serve a notice to end a tenancy.
- ASSIGN OR SUBLET.** The tenant shall use the premises as a private residence and no other purpose. The tenant shall **NOT** assign or sublet the premises or any part thereof without obtaining the landlord's prior and written consent. The current tenant shall not allow the new tenant occupy the premises (move in the furniture or give the keys etc) prior to the start date of the contract without the landlord's written consent, or it shall be considered as a breach of this agreement, which may result in termination of the Lease.
- MOULD.** The tenant must ensure the rental unit is **properly ventilated, exhaust fans are well-operated, and follow housekeeping practices that can minimize the occurrence or accumulation of mould or mildew**. The tenant understands that the bathroom exhaust fan must remain on for reasonable period of time after each a shower in order for the landlord's warranty coverage to remain valid. If the tenant shuts off the fan or fails to re-program the fan after a power outage or shut down, the tenant agrees to assume all liability for any damage caused to the unit due to such failure that voids the home warranty.
- CLEANING FEE.** In order to avoid any conflicts concerning the standard of cleanness by the end of the tenancy, it is mandatory that the tenants prepay the cleaning fee at the start of tenancy (i.e., before tenants moving-in), regardless of the tenancy term. The standard cleaning fee list:

Regular Unit		2 Level Townhouse	
Studio/Bachelor	\$300	2 Bdrm 1.5 or 2 Bath	\$450
1 Bdrm	\$350	3 Bdrm 2 Bath	\$480
1 Bdrm 1 Den	\$370	3 Level Townhouse	
2 Bdrm 1 Bath	\$380	3 Bdrm 2.5 or 3 Bath	\$580
2 Bdrm 1.5 or 2 Bath	\$420	4 Bdrm	\$640
3 Bdrm 2 Bath	\$450		
3 Bdrm 2.5 or 3 Bath	\$480	Furnished Extra Fee	\$100

In accordance with clause 7, the tenants understand that they shall pay **an extra cleaning fee of \$200** if fail to do the move-out inspection on the reserved time. In accordance with clause 10 and clause 11, if one or more tenant(s) moves out before the end of the tenancy (breaking the lease), the leaving parties agree to pay a extra cleaning fee as following table on the next page: (this cleaning fee covers the designated bedroom(s) and the all the common area)

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Sutton-Group MetroLand Realty
 Address: 8962 University High Street, Burnaby, V5A 4Y6

Regular Unit	1 Bdrm	2 Bdrm	2 Level Townhouse	1 Bdrm	2 Bdrm	3 Bdrm
1 Bdrm 1 Den	\$160		2 Bdrm 1.5 or 2 Bath	\$110		
2 Bdrm 1 Bath	\$110		3 Bdrm 2 Bath	\$180	\$130	
2 Bdrm 1.5 or 2 Bath	\$105		3 Level Townhouse	1 Bdrm	2 Bdrm	3 Bdrm
3 Bdrm 2 Bath	\$165	\$125	3 Bdrm 2.5 or 3 Bath	\$185	\$145	
3 Bdrm 2.5 or 3 Bath	\$175	\$110	4 Bdrm	\$220	\$155	\$640
			Furnished Extra Fee			\$100

7. **NO DISPOSED POSSESSIONS.** Upon the tenant's departure, the tenant must vacate the rental unit, the parking lot and the storage locker. **No possessions or items are allowed to be disposed of**, such as furniture, clothes, and daily necessities, etc, inside or outside the premises, especially on balcony or deck or patios of the property. And there shall be no items left in the storage locker, otherwise the possessions will be deemed as garbage, and **a minimum \$50** disposal fee will be deducted from the security deposit depending on the amount and the type of garbage that needs to be recycled. An additional disposal fee of **\$500** will be charged if the garbage is furniture or appliance.

8. **CONDITION INSPECTION (MOVE IN/OUT).** When the tenant is entitled to possession, **meaning noon (11:59am) on the start date of the contract**, the tenant MUST do a move-in condition inspection of the rental unit with the landlord. And during the tenancy, in accordance with clause 14, the tenant agree and consent to entry by the landlord into the premises, upon receiving notification in writing, for the purpose of condition inspection. At the end of the tenancy, the tenant MUST do a move-out condition inspection with the landlord upon departure as well. The tenant will promptly check the on-line booking system to ensure an available time for a move in/out inspection with the landlord. The tenant must notify the landlord at least **5 business days** in advance for any change or cancellation to the appointment. The tenant understands and agrees that failure to do so will result in **an extra \$200 cleaning fee**.

9. REPAIRS.

During the tenancy:

- The tenant must maintain reasonable **health, cleanliness and sanitary standards** throughout the rental unit and the other residential property to which the tenant has access. If the tenant does not comply with such obligations within a reasonable time, the landlord may discuss the matter with the tenant and serve a notice to end the tenancy;*
- Based on TBA, the tenant is responsible for replacing **burned out fuses, light bulbs, and smoke alarm batteries**;*
- The tenant is solely responsible for minor issues caused by **misuse or lack of care**, especially **clogged drain** in washer and dryer, bathroom, and kitchen due to hair, food, or other objects. The tenant understands and agrees that it is **NOT** the landlord's responsibility to do such repairs and shall find his/her own serviceman for such purpose at tenant's cost.*
- The tenant must finish all the repairs, which could be a hazard to the rental property or to personal health and safety, in a reasonable time period.*

When moving out: The tenant agrees to take good care of the appliances, hardwood floor, and walls. The tenant is responsible for repairing or replacing any damage to the appliances, hardwood floor, walls made to the property during the tenancy(except wear and tear). **All damages must be repaired before 12:00 pm on the last day of tenancy.** The tenant has no rights to access the premises afterward and **the tenant is responsible for any further or unfinished repair** including the cost of all materials and labor and agree **that this may be taken out of the damage deposit.** The repair or replacing standard shall be the same as the move-in condition.

10. **OVERHOLDING.** The tenant will vacate the rental premise and return all the keys by 1PM on the last day of tenancy. If the tenant remains in possession of the rental unit after the day upon which the tenancy is to end in accordance with this Agreement, or after any other lawful end of the tenancy, the tenant agrees to pay a fine of \$300 per day as compensate to the landlord's loss. The tenant will promptly check the online booking system to ensure an available time for a move-out inspection with the landlord.

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Sutton-Group MetroLand Realty
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- 11. TENANT BREAK LEASE.** As this lease is a “Fixed Term Residential Tenancy Agreement”, the tenant understands and agrees that in the event that the tenant shall end the tenancy prior to the termination date for any reason whatsoever, **the tenant must inform the landlord in writing and at least one clear full month in advance.** One clear month means to be counted as from the end of the month in question, e.g. if the tenants is moving out on May 31st (rent is due June 1st), giving notice on or prior to April 30th is considered to be a clear month notice. Notice given on May 18th for moving out on June 18th is NOT considered a one-month notice, but a short notice, which is in breach of the Tenancy Act. The Landlord shall charge and the tenant agrees to pay the following:
- a) *Rent until the termination date or such earlier date as the landlord begins receiving rent from an acceptable (at the landlord's sole discretion) replacement tenant. Should the landlord receive less rent from the replacement tenants as a result of the present tenant canceling the lease, the tenant shall pay the difference up to the ending of this tenancy agreement;*
 - b) *Administration fee for re-renting the unit.*
 - c) *Replacement cleaning fee for the entire unit.*
- 12. RE-RENTING ADMINISTRATION FEE.** The tenant will pay the landlord a penalty for all costs associated with re-renting the rental unit (credit check fees, advertising bills, property management fees etc). Payment of such penalty does not preclude the landlord from **claiming repair fees for damages and cleaning fee for the whole unit.**
- 1) **Half Month Rent for the whole unit:** *if the tenant finds an acceptable replacement tenant with landlord's approval. The tenant are fully aware that he/she is still responsible for paying the rent until the new tenant is found.*
 - 2) **One Month Rent for the whole unit:** *if the tenant wants to have the replacement tenant found for him/her; there will be a finder's fee applied, and it shall be paid the same time when the tenant place such request. It is clearly understood by the tenant that the administration/finder's fee is NOT refundable. The tenants is fully aware that he/she is still responsible for paying the rent until the new tenant are found.*
 - 3) **Two Month Rent for the whole unit Plus Full Security Deposit:** *If the tenant agrees to pay extra two month's rent plus to give up the security deposit as the lease breaking fee, then it is considered a mutual agreement to end the lease immediately.*
- 13. CONTRACTUAL.** If more than one tenant signs this agreement, their respective obligations as tenants are joint and equal. The landlord may end this tenancy and regain vacant possession of the rental unit **if any tenant breaches this agreement.** If one or more tenant(s) in a shared unit break the lease, the remaining tenant(s) is responsible for paying the full rent otherwise it is deemed as all the tenants are breaking the lease.
- 14. RENEWAL.** The tenant understand that this is a fix-term agreement and both are agree to discuss the extension under BC's allowable rent increase after the fix-term agreement. Before the end of the tenancy, by giving the landlord two-month written notice, the contract shall be renewed one month before the end date of the current contract. The tenant may renew the lease for another **fixed term, minimum 4 months or longer.**
- 15. RENT PAYMENT.** The Rent shall be \$_____ per month. **Tenant will provide the bank information for the rent auto-deposit system upon taking possession of the unit.** Rent is due and payable on the first day of each and every month. Tenant will promptly check the account balance before the rent due date (usually the 1st workday of every month) and make sure there is enough money to cover the rental payment. **Each Non-sufficient funds auto-deposit is subject to a minimum service charge of \$20.00.** Should the tenant not pay the rent on time, it is considered to be a fundamental breach of this agreement and subject to eviction proceedings. After eviction proceeding, landlord has the right to claim the money that is owing of the tenant. The landlord must give the tenant a receipt for rent paid in cash. Upon termination of the tenancy, the landlord must cease the auto-deposit from tenant's account.
- 16. SECUTIY DEPOSIT.** The landlord acknowledges receipt from the tenant of the sum of \$_____ as a security deposit and \$_____ as furniture deposit to secure the tenant's performance of the obligations imposed by this agreement. The following terms shall apply with respect to the deposit:

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- a) *When the tenant moves out, the premises must be left in good repair;*
- b) *If not, the landlord may claim only the amount reasonably necessary to repair damages to the premises caused by the misconduct of the tenant or to remedy any other default by the tenant under the provisions of this agreement;*
- c) *If the landlord claims any portion of the security deposit, he shall give to tenant a written accounting for the claim in the form prescribed by the applicable act dealing with landlord and tenants matters within 15 days after the end of the tenancy as stated on the tenancy contract.*
- d) *Tenant should make damages beyond the cost of the deposits, then this agreement is considered null and void with a one month notice to end tenancy. The tenant shall be responsible for all the extra cost to repair the damages. For example, either 20 holes in the walls or a big gash on the floor where there was none.*

17. LANDLORD'S ENTRY INTO RENTAL UNIT. During the duration of the tenancy agreement, the rental unit is the tenant's home and the tenant is entitled to quiet enjoyment, reasonable privacy, and exclusive use of the rental unit. The landlord may enter the rental unit only if one of the following applies:

- a) *With a 24-hours written notice in advance, the tenant must coordinate with the landlord to show the premises to potential home buyers, tenants, inspectors and maintenance people via the set schedule, voice message, mail, fax, e-mail, letter or communication APP. **If the tenant does not respond within 24 hours, it is deemed that landlord is allowed to access the premises.***
- b) *There is an emergency and the entry is necessary to protect life or property;*
- c) *The tenant gives the landlord permission to enter at the time of entry or not more than 30 days before the entry;*
- d) *The tenant has abandoned the rental unit;*
- e) *The landlord has an order of possession or a court stating the landlord may enter the rental unit;*

The landlord may inspect the rental unit monthly with reasonable notice in accordance with (a) above.

****The tenants agree to notify the landlord of an intended absence for more than 30 days and will permit the landlord to enter the premises during the absence if reasonably necessary.**

****Due to tradesman's nature of work, it is often difficult to book a service appointment with a exact time or with a 24-hour notice. Upon ordering a service request, the tenant authorize the landlord/landlord's agent to provide access to tradesman to preform any necessary repair/maintenance work between work days. It is mandatory for the tenant to cooperate with appointment time in order to have the premises properly maintained and service request fulfilled in a timely manner.**

18. EMERGENCIES. The tenant will immediately report to the landlord any damage, disrepair, unsafe hazard, leaking of water, default or deficiency in service on the premises, appliances and equipment or the grounds. The strata corporation may have the right to gain access to the premises with or without a notice in accordance with the Bylaw. The smoke alarm shall never be covered or removed, or a **fine of \$200** will be applied.

19. LOCKS. The tenant agrees that the locks cannot be changed without the landlord's consent and permission and that the landlord has his new set of keys within 24 hours if tenant changes the locks, or a **fine of \$500** will be applied.

20. KEY LOAN & RETURN. There will be a **\$35 service fee per day** if the tenants need to use the landlord's or landlord agent's key to open the door during regular working hours and \$75 during non-working hours. The deposit for the key loaning is \$100 per FOB, \$20 per key. An extra charge of \$35 per day will become applicable if the keys are not returned after 7 days. Should the tenant fail to return all the keys/fobs/remote controls/visitor parking pass to the landlord at the end of a tenancy, or the keys/fobs/remote controls/ are not working/broken, the tenant will be held responsible for the cost of replacement and agrees that this may be taken out of the damage deposit.

21. INSURANCE. The tenants must have his own insurance under a renter's package for his own possessions damaged by man-made or natural disasters. If the tenant does not have insurance or inadequate insurance, then the tenant shall not hold the landlord or agent of landlord responsible for damage to tenant's possession caused by the house. The tenant is advised to carry

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adequate insurance coverage for fire, smoke, and water damage and theft, on their own possessions, and may be held liable for accidental injury, accidental damage, or accidental breakage arising from the tenants' abusive, willful or negligent act, or omission, or that of his guest's in their use of the landlord's services and property. Additionally, tenant must carry adequate third party insurance if there is a container in the premises containing more than twenty-five liters of any liquid.

22. **LIABILITY.** The tenant will indemnify and save harmless the landlord from any act or omission, whether willful or negligent, the tenants or any guest, the agent represents or licensee of the tenants on or around the premises. The tenant shall not use the premises or its grounds for any purpose contrary to any statute, regulation, ordinance or bylaw made by any government authority. The tenant will not do, omit or permit to be done on the premises anything which may increase the fire insurance premium rate or which may invalidate any policy of insurance maintained for the premises.
23. **PETS.** It is a material term of this agreement that tenant may not keep or allow on the residential property any animal, a dog, cat, snake, bird, reptile or exotic animal, domestic or wild, fur bearing or otherwise. No pet policy includes tenant's visitors. Should the pet cause any damage to the rental unit, or interfere with any person on the residential property or neighboring properties, the tenants will be subject to a fine of \$500, and the tenant will be responsible for any resultant costs to the landlord of repairing the damage, compensating any person, and recovering legal or other expenses. If the tenant fails to correct a violation of this clause within 7 calendar days, including permanently removing a pet from the unit after receiving notice from the landlord to correct the violation, the landlord have the right to terminate the tenancy contract and proceed with the eviction process.
24. **SMOKE.** The tenant agrees that there will be absolutely no smoking (cigarettes, cigars, pipes, electronic cigarette or all types of marijuana). If the tenant smokes in the property, a fine of \$500 fine will be applied. The tenant is responsible for any resultant costs to the landlord for cleaning any odor, repainting the interior wall by a professional painter chosen by the landlord, replacing any damaged floors, carpets and window blinds caused by smoke. The landlord has the right to terminate the tenancy contract and proceed with the eviction process.
25. **NOISE.** All tenants and the guests of tenants shall not carry on any activity that can be deemed a nuisance or illegal and are asked to be especially thoughtful to other occupiers on the same property. Music and game sound need to be kept low. Tenant agrees to abide by the City noise bylaw and be absolutely quiet between 9:30PM and 8:00AM.
 The Tenant understands and agrees that due to the close proximity of the neighbors this condo is to be a quiet home. Large parties and loud music are not allowed and would be considered a breach of this Contract, which may result in eviction and a fine of \$200 will be applied. This is especially so if Strata Bylaws or RCMP officers need to involve in a noise complaint to the property.**
26. **FORM K.** The tenant shall comply with all bylaws and rules and their amendments of Strata Plan _____ and sign a Form K - Notice of Tenants' Responsibilities.
27. **STRATA FINES.** All strata fines will be charged to the landlord's account. The landlord will inform and send the tenant a copy of the letter received regarding any strata complaints/fines. If the tenant believes the fine is charged incorrectly, it is the tenant's responsibility to dispute with the strata council for any strata fee occurred. Any outstanding fines charge to the landlord's account will be deducted from the tenant's security deposit and paid to the strata at the end of tenancy.
28. **EMAIL.** All tenants agree to receive formal notices by providing email address for service at the following email address _____.

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Strata Bylaw and Contract Violation Fine Agreement

1. MOVE IN/OUT

- a) Tenants are responsible for all move-in/out fee charged by the strata (building).
- b) Tenants agree to pay \$_____ move-in/out fee upon paying the security deposit.
- c) Tenants are responsible for booking the elevator for moving in/out at least 3 days in advance and are aware that a fine of \$200 will be charged if not done so.
- d) Tenants are responsible for paying the damage deposit for the move in/out and are responsible paying for any damage to common area (elevator, hallway, etc.) cause by the move.
- e) When moving in, Tenants will pay extra attention to the fire sprinklers on the ceiling (and in the building's hallway where applicable) and will make sure they are not hit by any objects or furniture. Tenants will also advise the movers to do the same. Tenants are responsible for all the restoration cost if any fire sprinkler got hit or damaged.

2. STRATA BYLAW

- a) Tenants will obey all strata bylaw and are responsible for paying any fine caused by any violation.
- b) Tenants will monitor any notice posted in the building especially maintenance notice. Tenants will give access to any technicians for building maintenance purpose, such as, fire alarm inspection, dryer duct cleaning, window cleaning, and any other issues. Tenants will be responsible for any fine charged by the strata if failed to do so.
- c) Tenants hereby specifically agree the following and will pay the fine if failed to do so:
 - *The garbage must be bagged and sealed for disposal*
 - *ALL the recycling must follow the recycle instructions and the strata rules*
 - *No furniture or any other items that are prohibited shall be dumped in the garbage room*
 - *No garbage shall be left in the hallway or in any common area*
 - *No storage of personal belongings or garbage in the parking stall*
 - *Tenants shall throw absolutely nothing off the balcony*
 - *No washing balcony except authorized by the strata*
 - *No noise (music, bass, etc.) are allowed after 9:30pm*
 - *No smoking anywhere in the unit or on the balcony/patio*
 - *When entering/leaving the parking lot, tenants shall wait until the parking lot gate is fully closed before proceeding and not let other cars follow in, otherwise there will be a maximum of \$200 fine for the violation charged by the strata.*
 - *Tenants shall make no damage to any common property (hallway, elevator, parking gate, gym equipment, meeting room or lounge furniture, etc.) and are responsible for any replacement cost or fine.*
 - *Tenants shall not disable or cover up fire detectors*



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3. VIOLATION FINE

Tenants hereby are told and agree explicitly that:

- NO pets are allowed
- NO smoking anywhere in the rental unit or in the building
- NO loud noise is allowed

If the tenants are found to violate any of the above three terms, tenants agree to pay a \$500 fine for each violation, each time, PLUS any fine charged by strata. (i.e., if the tenants are found to have pet AND smoked in the rental unit, a total of \$1,000 fine is payable immediately.) After paying the fine, tenants agree to immediately stop such activity/behavior.

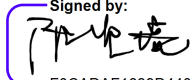
4.INSURANCE

Tenants are responsible for buying their own insurance for flood, fire, third-party liability, and any other categories they wish to insure. Tenants are responsible for paying the insurance deductibles if a claim is filed. Tenants are responsible for paying the damage or any restoration cost if another unit is damaged due to their negligence. (examples: left the water running or the stove/oven on and leave; left the clothes washer or dryer running and leave; left a candle burning and leave). Tenants are also responsible for having their vehicle(s) properly insured. Any uninsured vehicle(s) will be towed at tenants' cost.

5. FINE/FEE PAYMENT

Tenants are responsible for any unpaid strata fines.

ALL the fines or extra repair fees, whether strata fine or violation fine, are to be collected by the landlord's agent. Only cash or cheque will be accepted. Tenants shall pay the fine/fee within 5 Days after a bylaw or contract violation is reported/noticed/found, no exceptions. The late payment charge is \$15 per day.

Signed by:

 F0CADA4F4639D440...

_____	Tenants' Signature	_____	Date
_____	Tenants' Signature	_____	Date
_____	Tenants' Signature	_____	Date
_____	Landlords' Signature	_____	Date